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Lincoln Township Zoning Board of Appeals

Tom Godau – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Kim Smith*** - Alternate

Mary Abbott – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, March 14, 2018

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Board Members: Bridges, Secretary Engelhardt, Chair Godau, McCaslin, Vice-Chair Swanson,
Staff: Zoning Administrator Abbott, Building Inspector Mantei, Recording Secretary Sherrod, Rod Williams
Absent – None
Public – 7

Instead of asking for a roll call of the ZBA members, Chair Godau asked that all present introduce themselves and state their residence and purpose for attending this hearing.

Approval of Minutes:
Regular Meeting minutes of May 10, 2017 – It was moved by Engelhardt and seconded by McCaslin to accept the minutes as written.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau explained the structure and functions of the township government. He went on to explain what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the roles of the zoning administrator and the building inspector. The decision of the zoning board of appeals shall be final.

A party aggrieved by the decision may appeal to the circuit court of Clare County within whichever of the following deadlines comes first:

a. Thirty days after the zoning board of appeals issues its decision in writing signed by the chairperson, if there is a chairperson, or signed by the members of the zoning board of appeals, if there is no chairperson.
b. Twenty-one days after the zoning board of appeals approves the minutes of its decision.

Purpose: Chair Godau read the following information: This variance request of Jeffery and Sandra Drew for their property at 1995 Bungo Trail, Lincoln Township, Harrison, Michigan 48625, of Clare County, consisting of Lot 19, Stiner Subdivision, Tax ID #010-520-019-00 and Parcel A, part of Lot 1, Block 1, Oakdale Resort on Lake George, #010-321-001-03 is requesting approval for construction of a deck, covered or uncovered, which as requested would directly violate the Lincoln Township Zoning Ordinance No. 44.

At this time Chair Godau asked for a vote on the motion to approve the May 10, 2017, minutes. Motion carried 5 to 0.

Public notice: Notice of this Public Hearing was posted in the *Clare County Cleaver* (Legal Section) on February 22, 2018. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted in person by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary; 6. That the strict compliance with the site development in questions

would unreasonably prevent the owner from using the property; 7. That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property. Throughout his preceding comments and several times in the following discussions, Chair Godau reiterated that the purpose of the ZBA was not to design, engineer, nor develop alternatives to the proposed building project.

Statement from Zoning Administrator: ZA Jean Abbott stated Ordinance 44, Article 20, Section 20.9 subsection H and Section 20.12 subsection B. She then read the pertinent text which she used as the reason for the denial of this variance.

Petitioner's Statement: Mr. Drew stated that they have owned the property for several years along with the property with their residence. The two lots are connected by taxes if not physically. Their intention is to better the property with steps to the water. Mrs. Drew was injured in trying to get to the water last year so they thought it would be wise to put in stairs and level areas. Then to make better use of the lot, they desired to put in a small covered deck in order to have furniture on it. They felt that this plan would be minimally invasive to the water and the neighbors' properties. The person who has the lot next to this one is fine with the Drews' plans as is another neighbor, Jody Woods. She was only concerned about there being a roof that might impede her vision of the lake.

He feels that this property is virtually contiguous with the rest of his property due to the shape of the lots and the roadway and driveway on his residence.

They are only attempting to do something with the hill to make it safe to use and create a place to sit near the water. He didn't expect this plan to be disapproved because they have a deep enough lot and the plan will not impede anyone's sight.

Don Hamilton of Lapham Associates, representing the Drews, made a statement about the intent of zoning and then went on to say that he was confused by the current ordinance concerning the 50 foot set back as he feels that many properties on the lake are in noncompliance. He went on to say that this plan for the Drew property will not harm anyone.

ZBA Members Comments & Questions: Throughout the following period for ZBA members to make comments and ask questions of the appellants, there were times when others in the Public were speaking as well as times when several

people were speaking at once. Chair Godau did not call for order at any time. This cross-talking, interrupting, and commenting by people not recognized by the Chair led to confusion and difficulty in recording accurate minutes.

Chair Godau addressed the contiguous aspect of these two properties. He stated that these are not contiguous. This township does not allow for property across the street from each other to be contiguous. This does not negate the plan as there are other ways to do this.

McCaslin addressed the intent of the 50 foot setback and how it developed over the years of discussions by the Planning Commission. The intent is to protect the lakes. There are other things which can be done if they follow other rules like height above the ground, etc. The biggest concerns are the environmental impact on the lake. The properties that look like they are in nonconformity have been that way for years; they are grandfathered in.

Chair Godau went on to reiterate the fact that other properties are closer to the lake than currently allowed, but are grandfathered as they were created before the zoning ordinance.

Hamilton stated that Lincoln's ordinance has made it so older properties cannot be rebuilt without coming before the ZBA for a variance. He said that the board is denying to the Drews what everyone else around the lake has.

Bridges stated he has worked with zoning for many years and in different places. He said that Michigan Zoning Act spells out the same laws for everyone. We just updated the new ordinance to remove many old problems. We are obligated by Michigan law to apply the ordinance to situations and make our decisions.

Engelhardt stated that she lives in a nonconforming home and says that she can empathize with them. She walked down to the lake on their property and it is a hard walk. However, the neighbor did show some concern that the deck being planned would have a roof and this will impede her view. She went on to say that their properties are NOT contiguous. She agrees that there are safety issues with the lot.

J. Drew responded to the environmental issue in that they need to walk down the hill, creating a path thus causing erosion. The intent with the deck is to have a flat space for safety and create a human made walkway to prevent erosion. They do not leave things around. He stated that he is a strong advocate of the environment

and protecting the lake. But he felt that this is a very insignificant amount of space. They are trying to improve the hill and keep further erosion from running into the lake.

S. Drew talked briefly about their attempt to use the hill in the most natural way possible. It is not safe the way it is right now. Their parents' property is going to be unsafe soon as their steps in the nearby, similar, lot are getting worse. She is looking at the safety and ergonomics of the situation. She stated that something has to be done in order for them to be able to access the water safely.

Engelhardt questioned the covered deck which she feels is really stretching the ordinance.

J. Drew said that they observed others with it, but they don't require a roof. They do, however, need a stable place to walk and that is the reason for the deck. They felt as long as they were planning to spend money and time on steps, that they might as well put in a deck.

Engelhardt said that in order to do this deck, it will need to be elevated so as not to be built into the hill

S. Drew said that all that has been taken into consideration and they are working to not damage the hill.

Godau said that the issue is not whether the deck is covered or uncovered, but the deck itself which is well-defined in the ordinance as well as the 50 foot setback. These are not new to the ordinance. This is an issue that pertains to this lot. When it was first split it was agreed by all parties that these three were unbuildable. You cannot build a structure on an unbuildable lot. This is not a buildable lot due to the setbacks. Godau went on to state that it is too close to the water.

J. Drew said that it will improve the lot. It will add aesthetics to the area. He is just asking for understanding. He was not aware of the agreement to not build on the lot when he purchased it.

Godau used examples of other properties that are similar and that owners and users of those properties find ways to use them without building.

J. Drew said that he is basically asking to be able to build landings onto the stairs to allow for more safety. He understands that the ordinance has been explained to him.

Godau stated that the board has not said that the Drews can't improve the lot; they are just talking about not being able to build a structure on the lot.

Bridges stated that he would be blunt: he has seen people who buy lots for a good deal and then find they can't build anything on them. When you take possession of a piece of property you need to find out what you can and can't do before you buy. We can grant variances for reasonable requests. For yours there are so many violations that we would be negligent in granting your variance.

McCaslin asked for clarification on the materials being used for the steps. Answer: concrete slabs and a gravel pathway. S. Drew said that they are also considering handicapped usage. The deck would be composite material. McCaslin asked if more trees will come out. J. Drew said that no more trees will come out than the ones already removed due to oak wilt disease damage.

McCaslin asked for clarification of how the lots are combined in terms of taxes. Rod Williams stated that this does not make them considered contiguous physically.

J. Drew stated that by buying the residential lot, they got access to the lake by the lot across the street.

Godau asked what else besides the deck the Drews want to have considered.

S. Drew explained that they want to have wheelchair accessible accommodations in the steps and landing system.

Godau asked the Building Inspector if they need a building permit for this. His concern is that if they build their own steps that they be safe ones.

J. Drew said that they will be using a qualified builder; they are not doing it themselves.

S. Drew feels that stone and rock are not what they want; that it is not as good looking. It also would do more damage. Their intention is to make it look more natural.

Godau stated again that the board is not here to design, engineer, or develop new plans. It looks like you won't be getting a deck, but now we are looking at the steps themselves. We would need to know some things in order to make a motion concerning this part of the plan. Do you want to expand on the step issue?

J. Drew said that in order to place the steps the way we want to we need to have a landing.

Godau then asked about landings, number of steps, railings, etc. for safety. He is concerned that the township could be held liable if they grant a variance for steps and landings.

S. Drew is looking for a flat area for someone who cannot walk on an uneven surface like sand.

McCaslin said that she cannot sign off on a deck eleven feet from the water.

J. Drew said that as long as there will be a landing, why not make it usable and make it a deck.

Public Comment: Prior to this segment, Chair Godau made no statement of time limit for any speaker recognized, nor did he cite any other rules for addressing the board.
Hamilton stated that the purpose for the Drews coming to the board is to ask to give them something different that is not harmful to the community. They have taken a lot of time to design this so that it doesn't harm the environment.

Godau stated that what they are asking to build is a structure and it is too close to the water. At this point there was a great deal of back and forth talk with interruptions and raised voices between the Chair, Mr. Hamilton, and several others present. It was impossible to follow for the purpose of recording.

Engelhardt called for a point of order.

Drew, Sr. stated that it seems that there is a lot of emphasis on the word "structure" and what these people are trying to do is get to the water safely. They are not trying to do anything to disrupt the township.

One piece of correspondence was received by Chair Godau which he did not read.

J. Drew stated that he is confused as he doesn't know how he can have steps if he is not allowed to have landings.

The drawing shows a 22 x 18 x 10 foot deck.

Roger Carey stated that the Drews' question to the board should be that they need to build steps; how can we do that with landings?

J. Drew stated that is what we want to do. He then went on to say that he would like to take advantage of the depth of the property by having more than just a landing and steps.

Godau said that you have asked for the deck in spite of being told that you cannot have a deck.

Godau asked again if they want the board to vote on this issue concerning a deck or talk more about steps and a landing.

J. Drew: If we talk about steps and a landing and you approve it, then how does this proceed?

Godau said when you talk about landing you will need a building permit.

Public Comment Closed by Chair

Discussion and Further Questions by ZBA Members:
McCaslin: I cannot support anything within eleven feet of the water. However, they need steps as long as they remain away from the water and no cement or railroad ties. She stated an ordinance that would allow them to put in something using gravel closer to the water.

Engelhardt: I agree with McCaslin but absolutely nothing covered.

McCaslin stated the ordinance 14.8 B2 environmental buffer area that would allow them to move the deck 25 feet off the high water mark of the lake, make it no more than three foot high, they could have the deck.

Bridges cited a different part of the ordinance which negated the ordinance which McCaslin referred to.

J. Drew asked to withdraw his request and take some further actions. He apologized for his ignorance of the ordinance. He was talked out of this action to withdraw.

Bridges stated that he doesn't think that Ordinance 14.8 B2 applies to this situation.

McCaslin found the 20.12 which refers to a dwelling which this lot does not have. Therefore, she felt that it needs to go back to the 14.8 B2 environmental buffer zone.

Hamilton asked again to make a statement.

Godau stated that he would not allow Hamilton to keep bringing up the same issues.

Public Comment: Hamilton stated that he was denied the opportunity to speak during the public comment period and wished to have this stated here in the minutes. He had asked only to be able to read to the board the Drews' application and that, since he was in attendance to represent the Drews, that he was not a member of the public, but a part of the appellant party.

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Chair Godau called for a motion. Bridges made a motion to deny the variance request as presented. Godau seconded.

At this point there was some confusion about how the vote was to be made as to how to vote to support the motion (denial) and how to take the vote. After a reminder from the Recording Secretary Chair Godau made the following statement and proceeded with the vote.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Bridges: **Yea;** Engelhardt: **Yea;** Godau: **Yea**; McCaslin: **Nay**; Swanson: **Nay**

Motion Passed: 3 Yeas; 2 Nays. Variance is Denied**.**

Adjournment: As the Recording Secretary was working on the paper work to give to the appellants before they left [Certified Decision Form], persons present, including the ZBA members, rose and began to leave. Chair Godau was reminded that the hearing was not yet adjourned and, instead of his calling everyone back to the table for a motion to adjourn and a vote to do so, he just stated that this meeting is adjourned. This took place at 9:11 pm without a vote.

The Drews were handed a signed Certified Decision Form which begins their 30 day period in which to appeal the decision of the ZBA.

Respectfully Submitted,

Cindy Engelhardt, Secretary